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LEGAL ADVISORY AND CONVEYANCING OFFICE
LANDS DEPARTMENT

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我們矢志努力不懈，提供盡善盡美的土地行政服務。
We strive to achieve excellence in land administration.
香港北角渣華道三三三號北角政府合署二十樓
20/F., NORTH POINT GOVERNMENT OFFICES
333 JAVA ROAD, NORTH POINT, HONG KONG
網址 Website : www.landsd.gov.hk

1 September 2010

Legal Advisory and Conveyancing Office (“LACO”)
Circular Memorandum (“CM”) No. 63

Lands Department Consent Scheme
Measures to curb speculative activities

The Financial Secretary announced on 13 August 2010 that the following measures are to be adopted to curb speculative activities in respect of first-hand uncompleted residential units: -

- (i) ten percent (10%), instead of five percent (5%), of the purchase price will be forfeited if the purchaser under a preliminary agreement for sale and purchase does not sign the Agreement for Sale and Purchase (“ASP”) or if the ASP is later cancelled; and
- (ii) no nomination, subsale or any transfer of the benefit of the ASP by the purchaser before completion of the sale and purchase and execution of the Assignment to the purchaser is permitted.

The measures set out above will apply to all consents to sell uncompleted residential units issued on or after 13 August 2010. Consequently, the form of the ASP for residential units and paragraphs B12 and B17 in Annex I to LACO CM No. 62 are revised. Copies of the revised form of ASP and the revised Annex I to LACO CM No. 62 are attached.

In view of the measure set out in paragraph 1(ii) above, the developer and the purchaser in respect of any en bloc sale will not be required to give the undertaking referred

to in LACO CM No. 62. The standard form of undertaking at Annex V to LACO CM No. 62 is hereby cancelled.

_____ The report on funds in the stakeholder account and progress of sales in the form at Appendix III to LACO CM No. 54 is amended to include information relating to the cancellation of the ASPs and the forfeiture of the preliminary deposit. The revised Appendix III is attached for use by all stakeholder solicitors firm(s) in respect of consents to sell uncompleted residential units issued on or after 13 August 2010. These reports should be forwarded to the developer and copied to any mortgagee bank, LACO and Transport and Housing Bureau for information. Paragraphs 7.1.1 and 7.1.2 in Section I of the Annex to LACO CM No. 54 are hereby revised.

LACO CM No. 40 (as varied by subsequent LACO CM including LACO CM Nos. 54, 60 and 62) is amended, as appropriate. Except as varied by this CM, all other terms of the Consent Scheme remain in full force and effect.

Copies of this CM and the attachments may be downloaded from the Lands Department website at www.landsd.gov.hk.



(Ms Teresa WONG)
Deputy Director/Legal
for Director of Lands

To: All Solicitors

c.c. Transport and Housing Bureau
The Real Estate Developers Association of Hong Kong
Consumer Council
Estate Agents Authority
The Hong Kong Institute of Surveyors
The Hong Kong Institute of Architects
The Hong Kong Association of Banks

This Agreement is made the [] day of [] Two thousand and []
BETWEEN the Vendor *[the Financier] and the Purchaser whose particulars
are set out in Schedule 1.

WHEREAS :

Recitals

[(1) The Vendor is obliged under the Government Grant to erect and
complete upon the land before the [] day of [] 20[] the
Development in all respects complying with the General and Special
Conditions contained in the Government Grant.]

OR

[(1) Under the Exclusion Order the Vendor is obliged to erect and complete
not later than the [] day of [] 20[] the Development on
the land in accordance with the building plans.]

(2) For the purpose of selling and assigning various parts of the
Development certain undivided shares of and in the land have been
allocated to such parts, such shares being subject to adjustment by the
Vendor under Clause 21.

(3) The Vendor has obtained the consent of the Director of Lands to enter
into (inter alia) this Agreement for the sale of the Property.

NOW IT IS HEREBY AGREED AS FOLLOWS : -

Interpretation

1. (1) In this Agreement including the recitals the following expressions
shall have the following meanings except where the context
otherwise permits or requires: -

(a) "Authorized Person" means [], and this expression shall
include any other authorized person or persons as defined in
Section 2(1) of the Buildings Ordinance for the time being
appointed by the Vendor in his place.

**[(b) "Building" means the building or buildings comprised in
**[Phase [] of] the Development of which the Property forms
part.]

*[(c) "Building Mortgage" means the [] dated the []
day of [] made between the Vendor of the one part and []
of the other part and registered in the Land
Registry by Memorial No. [].]

(d) "building plans" means the general building plans and
specifications prepared by the Authorized Person and

* Delete if inapplicable

** For phased development only

approved by the Building Authority under Reference No. [] and includes any approved amendments thereto.

- (e) "Certificate of Compliance" means the certificate issued or to be issued by or on behalf of the Director of Lands to the effect that all the positive obligations of the Vendor under the Government Grant in relation to the land have been complied with.
- (f) "Construction Costs" means: -
 - (i) any sum incurred or to be incurred in connection with any works done or to be done, and materials or goods supplied or to be supplied, in connection with the site formation on the land and the substructure and superstructure construction for ^{**}[Phase [] of] the Development (including the communal ^{*}[and recreational] facilities as set out in Schedule 7), and the making of ^{**}[Phase [] of] the Development fit to qualify for the issue of an Occupation Permit and to comply with the Government Grant ^{**}[in so far as they relate to Phase [] of the Development];
 - (ii) any sums needed to be incurred by the Vendor to install the fittings and finishes of ^{**}[Phase [] of] the Development (including the fittings and finishes as set out in Schedule 6) and in making every unit in ^{**}[Phase [] of] the Development ready for handover to purchasers on completion of the sale and purchase; and
 - (iii) any other sums (excluding the Professional Fees) which in the reasonable opinion of the Authorized Person needed to be incurred to complete the construction of ^{**}[Phase [] of] the Development fit to qualify for the issue of an Occupation Permit and to comply with the Government Grant ^{**}[in so far as they relate to Phase [] of the Development] and this Agreement.
- (g) "Deed of Mutual Covenant" means the document to be registered in the Land Registry by which the rights, interests and obligations of all or any of the co-owners of the land and the Development among themselves are defined and incorporates a Management Agreement (if any).
- (h) "Development" means [**insert** brief description of the development giving as much information as reasonably practicable so that a purchaser will have a general understanding as to the nature and composition of the development, the communal and recreational facilities provided therein, other special features (if any), etc.] now

^{**} For phased development only

^{*} Delete if inapplicable

being constructed or to be constructed on the land in accordance with the building plans and intended to be known as [“ ”].

- *(i) “Exclusion Order” means the Exclusion Order dated the [] day of [] and registered in the Land Registry by Memorial No. [].]
- (j) “expiry date of the Building Covenant Period” means the date by which the Development is required to be completed under the #Government Grant/Exclusion Order or any extended period granted by the Government.
- (k) “Government” means the Government of the Hong Kong Special Administrative Region.
- (l) “Government Grant” means the Government Grant document specified in Schedule 2.
- (m) “land” means all that piece or parcel of land known and registered in the Land Registry as [insert lot number].
- (n) “Measurements” means the measurements of the Property set out in Schedule 4.
- (o) “Occupation Permit” means the written permission to be issued by the Building Authority under the provisions of the Buildings Ordinance for the #Building/Development to be occupied and includes a Temporary Occupation Permit.
- (p) “office hours” means 10:00 a.m. to 4:30 p.m. on weekdays and 10:00 a.m. to 12:00 noon on Saturdays.
- (q) “Other Areas” means: -
- (i) the area of any cockloft which shall be measured from the interior of the enclosing walls and shall include the internal partitions and columns within such cockloft;
 - (ii) the area of any bay window which shall be measured from the exterior of the enclosing walls or glass windows of such bay window and from the point where the bay window meets the wall dropping to the floor level of a unit excluding the thickness of such wall;
 - (iii) the area of any carparking space which shall be measured to the centre of its demarcating lines or the interior face of its enclosing walls, as the case may be; and
 - (iv) the area of any yard, terrace, garden, flat roof, roof and

* Delete if inapplicable

Delete as appropriate

air-conditioning plant room which shall be measured from the interior of their boundary lines, and where boundary consists of a wall, then it shall be measured from the interior of such wall.

Where the Property consists of any of the above-mentioned items, the area of each of such items shall be separately set out in Schedule 4.

^{**}[(r) "Phase []" means the phase of the Development comprising [Blocks].]

(s) "Professional Fees" means any sums incurred or to be incurred by the Vendor for the employment of the Authorized Person and other professional persons or consultants in relation to completion of ^{**}[Phase [] of] the Development.

(t) "Property" means the property described in Schedule 3.

(u) "Saleable Area" means the floor area of a unit enclosed by walls (inclusive of the floor area of any balconies, utility platforms and verandahs but exclusive of the Other Areas), which area (including any balcony, utility platform or verandah enclosed by walls) shall be measured from the exterior of the enclosing walls of such unit, balconies, utility platforms or verandahs (as the case may be) except where such enclosing walls separate two adjoining units, balconies, utility platforms or verandahs (as the case may be), in which case the measurement shall be taken from the middle of those walls, and shall include the internal partitions and columns within such unit, balconies, utility platforms or verandahs (as the case may be); but shall exclude the common parts outside the enclosing walls of such unit, balconies, utility platforms or verandahs (as the case may be), and for balconies, utility platforms or verandahs, shall exclude the whole thickness of the enclosing walls or boundary which abut onto the unit. Provided That if any of the enclosing walls abut onto a common area, then the whole thickness of the enclosing walls which so abut shall be included. Where a balcony, utility platform or verandah is not enclosed by a solid wall, the floor area of such balcony, utility platform or verandah shall be measured from the external boundary of the said balcony, utility platform or verandah.

(v) "Statutory Declaration" means the Statutory Declaration of the solicitor for the Vendor registered in the Land Registry by Memorial No. [] in relation to the consent of the Director of Lands to sell the Property.

(w) "Temporary Occupation Permit" means the temporary permit to be issued by the Building Authority under the provisions of

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the Buildings Ordinance for the [#]Building/Development or any part thereof comprising the Property to be occupied.

- (2) In this Agreement, if the context permits or requires, the singular number shall include the plural and the masculine gender shall include the feminine and the neuter.

Sale and purchase

2. The Vendor shall sell and the Purchaser shall purchase the Property TOGETHER with the right in common with the Vendor or other person or persons claiming through, under or in trust for the Vendor to use for the purpose of access to and egress from the Property the lifts, entrance hall, staircases and landings in the Development and such of the passages therein intended for common use and serving the Property and the appurtenances thereto and TOGETHER with all rights of way (if any) and other rights and all privileges, easements and appurtenances thereunto belonging or appertaining AND all the estate, right, title, interest, property, claim and demand whatsoever of the Vendor in and to the Property EXCEPTING AND RESERVING [#][unto the Vendor and its successors and assigns other than the Purchaser the right to the exclusive use, occupation and enjoyment of the whole of the Development ^{*}[including the external walls (if any) of the Property] SAVE AND EXCEPT: -

- (1) the Property; and
- (2) such areas and facilities (if any) as may be designated as common areas or common parts and facilities in the Deed of Mutual Covenant or are intended for common use.]

OR

- [#][(1) unto the Vendor and its successors and assigns other than the Purchaser the right to the exclusive use, occupation and enjoyment of the whole of the Development ^{*}[including the external walls (if any) of the Property] SAVE AND EXCEPT:-

- (a) the Property; and
 - (b) such areas and facilities (if any) as may be designated as common areas or common parts and facilities in the Deed of Mutual Covenant or are intended for common use; and
- (2) unto the Vendor the right at any time prior to completion of the sale and purchase to enter into a modification of the Government Grant to [**insert** brief description of the modification] on such terms and conditions as may be agreed between the Government and the Vendor at their absolute discretion without any reference to, concurrence or approval of the Purchaser and any persons deriving or acquiring title or interest in the Property under the Purchaser and without the necessity of joining in the Purchaser and

[#] Delete as appropriate

^{*} Delete if inapplicable

any persons deriving or acquiring title or interest in the Property under the Purchaser provided that all premium, charges and expenses for the modification of the Government Grant shall be borne by the Vendor solely and that the Purchaser's sole and exclusive right and privilege to hold, use, occupy and enjoy the Property shall not be affected.]

Purchase price

3. (1) The purchase price shall be the sum set out in Schedule 5 and shall be paid by the Purchaser to the Vendor's solicitors as stakeholders in the manner set out in Schedule 5.
- (2) In the event of any money paid hereunder to the stakeholders not being applied in the manner set out in Clause 26, such money shall be deemed to have been paid by the Purchaser to Messrs. [] as agents for the Vendor.
- (3) In the event of the Purchaser being required pursuant to Schedule 5 to pay the balance of the purchase price when the Vendor is not at that time in a position validly to assign the Property to the Purchaser for whatever reason, the Purchaser shall be entitled to withhold such payment until the Vendor is in a position validly to assign the Property and has given at least 14 days' notice in writing to that effect to the Purchaser. Provided that where the Purchaser has opted for payment of the full balance of purchase price within [] days of the signing hereof in accordance with Schedule 5, then this sub-clause (3) shall not apply.
- (4) In respect of each payment of the purchase price or any part thereof required to be made hereunder, the Purchaser shall deliver to the Vendor's solicitors on the date on which such payment is required to be made hereunder a cashier's order issued or a cheque certified good for payment by a licensed bank in the Hong Kong Special Administrative Region in favour of the Vendor's solicitors for the relevant amount.
- (5) Subject to sub-clause (3) but without prejudice to any other remedy hereunder, the Vendor shall be entitled to demand and receive payment of interest on the amount of any part of the purchase price not paid on its due date at the rate of 2% per annum above the prime rate specified by The Hongkong and Shanghai Banking Corporation Limited from time to time calculated from the date on which the same ought to have been paid by the Purchaser to the date of actual payment.

Construction of Development, extension of time, rescission, Certificate of Compliance

4. (1) The Vendor shall: -
 - (a) continue the construction of the Development with all due expedition;
 - (b) comply with the requirements of the Building Authority and of any other relevant Government authority relating to the Development; and

- (c) complete ^θ[Phase [] of] the Development in all respects in compliance with the conditions of the Government Grant ^θ[in so far as they relate to Phase [] of the Development], the building plans and this Agreement, incorporating the fittings and finishes as set out in Schedule 6 into the Property, on or before the [@][] day of [] subject to such extensions of time as may be granted by the Authorized Person in accordance with sub-clause (5)(a).
- (2) The Vendor shall complete the Development in all respects in accordance with the building plans by the expiry date of the Building Covenant Period. If at any time it appears likely in the opinion of the Authorized Person that the Development will not be completed by the expiry date of the Building Covenant Period, the Vendor shall promptly apply for and obtain such extension of time for completing the Development as shall be required and shall pay any premium to the Government for such extension. The Vendor shall notify the Purchaser of such application and the terms of extension granted within 30 days of each event.
- (3) If the Vendor fails to apply for and obtain any necessary extension of time for completing the Development under sub-clause (2) and fails to complete the Development by the expiry date of the Building Covenant Period, the Purchaser shall be entitled, ^{**}[unless the completion of the sale and purchase herein has taken place], in addition to any other remedy that he may have, to give the Vendor notice in writing in that behalf to rescind this Agreement and upon service of such notice, this Agreement shall be rescinded within 7 days thereafter and the Vendor shall repay to the Purchaser all amounts paid by the Purchaser hereunder together with interest thereon at the rate of 2% per annum above the prime rate specified by The Hongkong and Shanghai Banking Corporation Limited from time to time from the date or dates on which such amounts were paid to the date of repayment, the repayment of such amounts and interest to be in full and final settlement of all claims by the Purchaser against the Vendor hereunder.
- (4) (a) Subject to sub-clause (4)(b), if the Vendor fails to complete ^θ[Phase[] of] the Development by the date specified in sub-clause (1)(c) as extended by any extensions of time granted by the Authorized Person under sub-clause (5)(a), the Purchaser shall be at liberty by notice in writing to the Vendor to rescind this Agreement and upon service of such notice, this Agreement shall be rescinded within 7 days thereafter and the Vendor shall repay to the Purchaser all amounts paid by the Purchaser hereunder together with interest thereon at the rate of 2% per annum above the prime rate specified by The Hongkong and Shanghai Banking

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[@] Insert AP's estimated date of compliance

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Corporation Limited from time to time from the date or dates on which such amounts were paid up to the date of repayment, the repayment of such amounts and interest to be in full and final settlement of all claims by the Purchaser against the Vendor hereunder.

- (b) If the Purchaser does not rescind this Agreement under sub-clause (4)(a) within 28 days from the date specified in sub-clause (1)(c) or any extended date under sub-clause (5)(a), he shall be deemed, without prejudice to his rights under sub-clause (4)(c) hereof, to have elected to wait for completion of ⁰[Phase [] of] the Development. In such event the Vendor shall pay to the Purchaser interest at the rate of 2% per annum above the prime rate specified by The Hongkong and Shanghai Banking Corporation Limited from time to time on all amounts paid under this Agreement from the date following the date specified in sub-clause (1)(c) or any extended date under sub-clause (5)(a) up to the date of completion of ⁰[Phase[] of] the Development. Such interest shall be paid or allowed as a credit to the Purchaser in respect of the purchase price on completion of the sale and purchase.
- (c) Notwithstanding sub-clauses (4)(a) and (4)(b), if ⁰[Phase[] of] the Development is not completed in accordance with the building plans and the other provisions of this Agreement within a period of 6 months from the date specified in sub-clause (1)(c) or any extended date under sub-clause (5)(a), the Purchaser shall be at liberty either to rescind this Agreement in which event the provisions of sub-clause (4)(a) relating to repayment and interest shall apply or to await the completion of ⁰[Phase[] of] the Development in which event the provisions of sub-clause (4)(b) relating to the payment of interest shall apply.
- (5) (a) The Vendor shall be entitled to such extensions of time for completion of ⁰[Phase[] of] the Development beyond the date stated in sub-clause (1)(c) as shall be granted by the Authorized Person and appear to him to be reasonable having regard to delays caused exclusively by any one or more of the following reasons: -
 - (i) Strike or lock-out of workmen;
 - (ii) Riots or civil commotion;
 - (iii) Force majeure or Act of God;
 - (iv) Fire or other accident beyond the Vendor's control;
 - (v) War; or
 - (vi) Inclement weather and for the purpose of this Agreement inclement weather means rainfall in excess of 20 millimetres in a twenty-four hour period (mid-night to

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mid-night) as recorded at the Hong Kong Observatory, a Black Rainstorm Warning Signal is issued or the hoisting of Typhoon Signal No. 8 or above at any time between the hours of 8:00 a.m. and 5:00 p.m.

(b) The Vendor shall notify the Purchaser in writing within 14 days from the issue of any such extensions of time granted by the Authorized Person and furnish the Purchaser with a copy of the relevant certificate of extension.

(6) The Vendor shall apply in writing for a Certificate of Compliance or the consent of the Director of Lands to assign in respect of ⁰[Phase [] of] the Development within 14 days of its having completed ⁰[Phase [] of] the Development as stipulated in sub-clause (1)(c).

(7) For the purpose of this Clause, the issue of a Certificate of Compliance or consent to assign by the Director of Lands shall be conclusive evidence that ⁰[Phase [] of] the Development has been completed or is deemed to be completed as the case may be and nothing in this sub-clause shall preclude the Vendor from proving that it has complied with sub-clause (1)(c) by any other means.

Completion of sale
and purchase

5. (1) The Vendor shall notify the Purchaser in writing that it is in a position validly to assign the Property within one month of the issue of the Certificate of Compliance or the consent of the Director of Lands to assign, whichever shall first happen.
- (2) The sale and purchase shall be completed at the offices of Messrs. [] during office hours within 14 days of the date of the notification to the Purchaser that the Vendor is in a position validly to assign the Property to the Purchaser.

Possession

6. On completion of the sale and purchase, the Vendor and all other necessary parties (if any) will execute an Assignment of the Property to the Purchaser free from incumbrances but subject to the Government Grant and the Deed of Mutual Covenant. Subject as hereinafter mentioned, the Purchaser shall, on completion of the sale and purchase, be entitled to vacant possession of the Property, all outgoing including Government rent, rates and management fees up to and including the completion date being paid by the Vendor.

Risk

7. The Property shall as between the Vendor and the Purchaser remain at the Vendor's risk until the date fixed for completion of the sale and purchase in Clause 5.

Requisition on title

8. If the Purchaser shall make and insist on any objection or requisition in respect of the title or otherwise which the Vendor shall be unable or (on the ground of difficulty, delay or expense or on any other reasonable ground) unwilling to remove or comply with, the Vendor

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shall, notwithstanding any previous negotiation or litigation, be at liberty to cancel the sale on giving to the Purchaser or his solicitors at least 14 days' notice in writing to that effect, in which case unless the objection or requisition shall have been in the meantime withdrawn, the sale shall on the expiry of the notice be cancelled and the Purchaser shall be entitled to a return of the deposit and other sums of money already paid but without interest, costs or compensation.

- Government Grant 9. (1) The Property is sold subject to and with the benefit of the Government Grant, for the term of years created thereby and with any right of renewal thereby granted and subject to all easements (if any) subsisting therein.
- (2) No error, mis-statement or mis-description shall cancel the sale nor shall any compensation be allowed in respect thereof save as otherwise provided in this Agreement and except where such error, mis-statement or mis-description relates to a matter materially and adversely affecting the value or user of the Property.

- Warranties 10. The Vendor hereby warrants: -
- (1) that consent in writing for the Vendor to enter into this Agreement has been obtained under the [#]Government Grant/Exclusion Order;
- (2) that at the date hereof: -
- (a) the building plans have been duly approved;
- (b) the Authorized Person has duly certified that the foundations of ^{**}[Phase [] of] the Development have been completed;
- (c) the consent of the Building Authority has been given under the Buildings Ordinance to commence building works on the superstructure of ^{**}[Phase [] of] the Development; and
- (d) to the best of the Vendor's knowledge no impediment exists which would prohibit or impede the completion of construction of ⁰[Phase [] of] the Development within the time specified in Clause 4(1)(c);
- (3) that the fittings and finishes specified in Schedule 6 shall, on or before completion of the construction of ⁰[Phase [] of] the Development, be incorporated into the Property Provided Always that if the Vendor is prevented by force majeure or other reason beyond its control from obtaining such fittings and finishes, other fittings and finishes certified by the Authorized Person to be of comparable quality may be substituted;

[#] Delete as appropriate

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- (4) that subject to Clause 20 the Property will on completion of the construction of ^o[Phase [] of] the Development be as shown on the plan attached hereto and the measurements of the Property will be the Measurements; and
- (5) that on completion of the Development the Vendor shall provide the communal ^{*}[and recreational] facilities set out in Schedule 7.

No transfer of
Agreement

11. (1) Subject to sub-clause (2), the Purchaser shall not nominate any person to take up the Assignment of the Property, sub-sell the Property or transfer the benefit of this Agreement (whether by way of direct or indirect reservation, right of first refusal, option, trust, power of attorney or any other method, arrangement or document of any description, conditional or unconditional) or enter into any agreement so to do before completion of the sale and purchase and execution of the Assignment to the Purchaser.

Rights of Purchaser

- (2) The Purchaser shall at any time before completion of the sale and purchase be at liberty to: -
- (a) charge or mortgage the Property for the purchase money thereof Provided Always that notice in writing of any such charge or mortgage is given to the Vendor or its solicitors;
 - (b) instruct any firm of solicitors of his choice to act for him in this Agreement and the Assignment to the Purchaser and in the event that the Purchaser instructs solicitors other than the Vendor's solicitors to act for him, each party shall pay its own solicitors' costs of and incidental to this Agreement and the Assignment to the Purchaser (including all legal costs and disbursements of and incidental to the preparation, completion, stamping and registration of this Agreement and the Assignment).

Cancellation of
Agreement

- (3) In the event of the Purchaser requesting and the Vendor agreeing to execute a Cancellation Agreement or any other means which has the effect of cancelling this Agreement or the obligations of the Purchaser hereunder, the Vendor shall be entitled to retain the sum of 10% of the total purchase price of the Property as consideration for its agreeing to cancel this Agreement and not as a penalty and the Purchaser will in addition pay or reimburse, as the case may be, to the Vendor all legal costs, charges, disbursements (including stamp duty, if any) in connection with the cancellation of this Agreement.

Good title

12. (1) The Vendor shall at its own expense show a good title to the Property and produce to the Purchaser for his perusal such certified or other copies of any deeds or documents of title, wills and matters of public record as may be necessary to complete such title. The costs of verifying the title, including search fees, shall be borne by the Purchaser who shall also, if he requires certified

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^{*} Delete if inapplicable

copies of any documents in the Vendor's possession relating to other property retained by the Vendor as well as to the Property, pay the cost of such certified copies.

- (2) The Purchaser shall raise no objection if the Vendor's interest in the Property is an equitable interest and not a legal estate.

- | | |
|--------------------------------------|--|
| Documents of title | 13. Such of the documents of title as relate exclusively to the Property shall be delivered to the Purchaser. All other documents of title in the possession of the Vendor shall be retained by the Vendor who shall, if required, give to the Purchaser a covenant for the safe custody, production and delivery of copies thereof at the expense of the Purchaser. |
| Costs and disbursements of Agreement | 14. (1) Subject to the provisions of Clause 11(2)(b), all legal costs and disbursements of and incidental to the preparation, completion, stamping and registration of this Agreement and the Assignment to the Purchaser shall be borne and paid by the [#] Purchaser/Vendor. |
| Stamp duty etc. | (2) All stamp duty and registration fees (if any) payable on this Agreement and the Assignment to the Purchaser shall be borne and paid by the [#] Purchaser/Vendor. |
| Plan(s) | (3) The professional fees for the plan(s) to be annexed to this Agreement and the Assignment to the Purchaser shall be borne and paid by the [#] Purchaser/Vendor. |
| Time of the essence | 15. Time shall in every respect be of the essence of this Agreement. |
| Default of Purchaser | 16. (1) Should the Purchaser fail to observe or comply with any of the terms and conditions herein contained or to make the payments in accordance with Schedule 5 or any interest payable hereunder within 7 days of the due date, the Vendor may (subject to Clause 3(3)) give to the Purchaser notice in writing calling upon the Purchaser to make good his default. In the event of the Purchaser failing within 21 days from the date of service of such notice fully to make good his default, the Vendor may by a further notice in writing forthwith determine this Agreement.

(2) Upon the determination of this Agreement pursuant to sub-clause (1): -

(a) the sum paid by the Purchaser under item (i) of Schedule 5 by way only of deposit shall be forfeited to the Vendor; and

(b) where the Purchaser has entered into possession of the Property, the Vendor shall become entitled to re-enter upon the Property and repossess the same free from any right or interest of the Purchaser therein and to receive from the Purchaser as occupation fee a sum equal to interest at the |

[#] Delete as appropriate

rate of 2% per annum above the prime rate specified by The Hongkong and Shanghai Banking Corporation Limited from time to time on the unpaid balance of the purchase price for the period during which the Purchaser was in occupation.

- (3) Upon determination of this Agreement under sub-clause (1), the Vendor may resell the Property either by public auction or private contract subject to such stipulations as the Vendor may think fit and any increase in price on a resale shall belong to the Vendor. On a resale, any deficiency in price shall be made good and all expenses attending such resale shall be borne by the Purchaser and such deficiency and expenses shall be recoverable by the Vendor as and for liquidated damages Provided That the Purchaser shall not be called upon to bear such deficiency or expenses unless the Property is resold within 6 months of the determination of this Agreement.

- | | |
|----------------------------------|---|
| Default of Vendor | 17. In the event of the Vendor failing to complete the sale in accordance with the terms and conditions hereof, it shall not be necessary for the Purchaser to tender an Assignment to the Vendor for execution before taking proceedings to enforce specific performance of this Agreement. |
| Deed of Mutual Covenant | 18. On completion of the sale and purchase, the Purchaser shall EITHER enter into a Deed of Mutual Covenant with the Vendor to define their respective rights and obligations of and in the land and the Development and to make provisions for the management of the Development OR at the Vendor's option accept an Assignment of the Property from the Vendor subject to and with the benefit of the Deed of Mutual Covenant entered into by the Vendor with another purchaser or purchasers in respect of the land and the Development. Such Deed of Mutual Covenant shall follow closely the draft exhibited to the Statutory Declaration subject however to such modifications as are necessitated by changes in the building plans, any adjustment of the undivided shares, a change in the management company and the like. The provisions of the Deed of Mutual Covenant shall not conflict with the Guidelines set out in Legal Advisory and Conveyancing Office Circular Memorandum No. 56 as amended from time to time unless otherwise permitted by the Director of Lands. |
| Costs of Deed of Mutual Covenant | 19. The Purchaser shall pay to Messrs. [] the costs of and incidental to the Deed of Mutual Covenant in accordance with the scale of costs prescribed in the Solicitors (General) Costs Rules which include the costs for the provision of a certified copy of such Deed of Mutual Covenant to the Purchaser. |
| Alteration of building plans | 20. (1) Notwithstanding anything hereinbefore contained, the Vendor hereby reserves the right to alter the building plans whenever the Vendor considers necessary Provided That the Vendor shall notify the Purchaser in writing of such alteration if the same affects in any way the Property as soon as the same has been approved by the Building Authority. If, as a result of such alteration, the measurements of the Property or any part thereof according to |

such amended plans shall differ from the Measurements, then the purchase price shall be adjusted in proportion to the variation of the measurements of the parts of the Property affected Provided That if the increase or reduction in the measurements of the Property or any part thereof shall exceed 5% of the Measurements, then the Purchaser shall be at liberty to rescind this Agreement, in which event all moneys paid by him hereunder shall be returned to him with interest thereon at the rate of 2% per annum above the prime rate specified by The Hongkong and Shanghai Banking Corporation Limited from time to time from the date or dates of payment to the date of repayment. The Purchaser shall exercise his right of rescission by notice in writing to the Vendor within 30 days of the Purchaser being notified in writing by the Vendor of the approval of such amended plans by the Building Authority, and if no such notice is received by the Vendor within such time, the Purchaser shall be deemed to have accepted such plans.

(2) Any dispute as to: -

- (a) the extent of any variation in the Measurements under sub-clause (1);
- (b) the extent of any adjustment of the purchase price as a result thereof; or
- (c) whether the proviso to Clause 10(3) has been complied with and, if it has not, as to the extent of the damages which should be paid

shall first be referred to the Authorized Person for a decision thereon.

- (3) If either party is dissatisfied with the decision of the Authorized Person made pursuant to sub-clause (2), such party shall within 14 days of the decision being communicated to him give to the other party notice of his intention to refer the matter to another authorized person as defined in Section 2(1) of the Buildings Ordinance acting as an expert. Should the parties fail to agree on such other authorized person to be appointed within 30 days after the giving of such notice either party shall be entitled to apply to the President of The Hong Kong Institute of Surveyors for the appointment of a member of the Institute whose decision shall be final and binding on both parties. If neither party refers the decision within the time aforesaid, the decision of the Authorized Person shall be final and binding on the parties hereto. The costs of the Authorized Person shall be paid as directed by him in his award.

Adjustment of
undivided shares

21. The Vendor hereby expressly reserves the right to adjust the number of undivided shares into which the land and the Development shall be notionally divided and the fraction which each share bears to the whole Provided That such adjustment shall not: -

- (1) alter the total number of undivided shares by more than 3% without the prior written consent of the Director of Lands; or
- (2) affect the Purchaser's sole and exclusive right and privilege to hold, use, occupy and enjoy the Property.
- Utility deposits 22. Before being entitled to possession of the Property, the Purchaser shall:-
- (1) reimburse the Vendor a due proportion of any deposits paid by the Vendor for the supply of water, electricity and gas (if any) to the common parts of the Development; and
- (2) pay to the Vendor or the manager of the Development all the deposits and advance payments payable under the Deed of Mutual Covenant and the deposit for the removal of debris left by the Purchaser his agents or contractors.
- Alteration of standard terms 23. None of the terms of this Agreement shall in any way be altered or varied nor shall any arrangement or agreement whether written or otherwise whatsoever be entered into which has the effect of altering or varying the terms of this Agreement without the prior written approval of the Director of Lands.
- Registration 24. This Agreement shall be registered in the Land Registry within 1 month from the [] day of [] 20[] being the date of the preliminary agreement referred to in item (g) of Schedule 8.
- No *[further] mortgage by Vendor 25. The Vendor shall not after the execution of this Agreement enter into any *[further] mortgage or charge of the Property or any other part of the land or the Development without obtaining the prior written consent of the Director of Lands but nothing herein shall prevent the Vendor from charging the unpaid proceeds of sale under this Agreement (subject however to Clause 26) to further finance the Construction Costs and the Professional Fees so long as notice of any such mortgage or charge is given to the Purchaser.
- Release of purchase price 26. (1) Subject as hereinafter provided, any part of the purchase price paid by the Purchaser to Messrs. [] shall be held by them as stakeholders pending completion of the sale and purchase and shall be applied and released in the following manner only: -
- (a) first, towards payment of the Construction Costs and the Professional Fees to the Vendor from time to time in such amount or amounts as shall be certified by the Authorized Person as having been expended or having become payable on the construction of **[Phase [] of] the Development;

* Delete if inapplicable

** For phased development only

- (b) second, towards repayment of funds drawn under the Building Mortgage (if any) for payment of the Construction Costs and the Professional Fees and interest thereon;
- (c) third, in the event of Messrs. [] at any time holding as stakeholders a sufficient sum to cover the entire outstanding balance of the Construction Costs and the Professional Fees as certified by the Authorized Person from time to time and other sums referred to in sub-clause (1)(b), towards payment of any other moneys secured by the Building Mortgage (if any); and
- (d) fourth, in the event of Messrs. [] at any time holding as stakeholders a sufficient sum to cover the total of the sums referred to in sub-clause (1)(c), then Messrs. [] may release the excess amount to the Vendor.

Provided Always that: -

- (i) in respect of any payment under sub-clause (1)(a) Messrs. [] shall not at any time release to the Vendor any sum in excess of the amount certified by the Authorized Person as having been paid and/or become payable towards the Construction Costs and the Professional Fees at that time less the amount which the Vendor has drawn under the Building Mortgage (if any) for payment of the Construction Costs and the Professional Fees; and
 - (ii) the Vendor shall not in any circumstances draw under the Building Mortgage (if any) any part of the Construction Costs and the Professional Fees already paid under sub-clause (1)(a).
- (2) All moneys received by Messrs. [] as stakeholders hereunder shall be placed in a client account bearing interest and subject to clearance (if the payment is made by cheque) the Vendor shall be entitled to all interest (if any) earned on such account.

Notices

27. Any notice required to be given hereunder shall be deemed to have been validly given if addressed to the party to whom the notice is given and sent by ordinary prepaid post to the address of such party herein stated or to his last known address if a notification of change of address has previously been given to the other party or his solicitors and shall be deemed to have been served on the second business day after the date of posting.

Defects

28. (1) The Vendor shall at its own cost and as soon as reasonably practicable after receipt of a written notice served by the Purchaser within 6 months of the date of completion of the sale and purchase under Clause 5 remedy any defects to the Property, or the fittings or finishes specified in Schedule 6, caused otherwise than by the act or neglect of the Purchaser. The provisions of this sub-clause

are without prejudice to any other rights or remedies the Purchaser may have at common law or otherwise.

- (2) The Vendor undertakes with the Purchaser to use its best endeavours to enforce all defects and maintenance obligations under all contracts relating to the construction of the Development in so far as such defects relate to or affect the Property or the common parts and facilities of the Development.
- (3) In the event of the winding-up (whether voluntary or otherwise) or dissolution of the Vendor the benefit and rights of and in all warranties and guarantees under all contracts relating to the construction of the Development shall be assigned by the Vendor to the Owners' Corporation incorporated under the Building Management Ordinance or if no such corporation exists to the manager of the Development for the time being to be held in trust for the Purchaser and all other purchasers of units in the Development.

*[Modification of Government Grant]

*[29. The Purchaser hereby expressly acknowledges and agrees that the Vendor may apply to and negotiate with the Government for a modification of the Government Grant to **[insert brief description of the modification]** pursuant to its right excepted and reserved under Clause 2(2) and may take personally (to the exclusion of the Purchaser and any persons deriving or acquiring title or interest in the Property under the Purchaser) any benefit arising out of or incidental to the modification entered into and that the modification of the Government Grant shall not give to the Purchaser, or any persons deriving or acquiring title or interest in the Property under the Purchaser, any right of objection or action against the Vendor or the Government.]

Provisions to survive Assignment

30. The provisions of Clauses 10, 13 and 28 shall survive completion of the sale and purchase by the Assignment.

OR

Provisions to survive Assignment

30. The provisions of Clauses 10, 13, 28 and 29 shall survive completion of the sale and purchase by the Assignment.

Public holiday etc.

31. If the day on which completion of the sale and purchase is to take place as hereinbefore provided shall fall on a public holiday or on a day on which Typhoon Signal No. 8 or above is hoisted or Black Rainstorm Warning Signal is issued at any time between the hours of 9:00 a.m. and 5:00 p.m., completion of the sale and purchase shall be automatically postponed to the immediately following day which is not a public holiday and on which no Typhoon Signal No. 8 or above is hoisted or Black Rainstorm Warning Signal is issued at any time between the hours of 9:00 a.m. and 5:00 p.m.

*[Financier]

[32. The Financier hereby covenants with the Purchaser that the Financier

will not call back the whole or any part of the loan which has been advanced or will be advanced to the Vendor until the Development has been completed and that the Financier will, if necessary, provide all further finance to enable the Vendor to complete construction of the Development.]

Marginal notes 33. The marginal notes to this Agreement shall not be deemed to be part hereof and shall not affect the interpretation or construction of this Agreement.

@[Certificate of value] @[34. It is hereby certified that the transaction hereby effected does not form part of a larger transaction or a series of transactions in respect of which the amount or value or the aggregate amount or value of the consideration exceeds HK\$.]

Stamp Duty Ordinance 35. For the purpose of sections 29B(1) and 29B(5) of the Stamp Duty Ordinance, the matters required to be specified are as set out in Schedule 8.

@ Delete if the value exceeds the amount specified in Head 1(1A) of the 1st Schedule to Cap 117

SCHEDULE 1

Parties

(a) Vendor :

(b) Purchaser : **[insert** name, title, identification document (if any) and address of the party/parties signing the Agreement]

^{*}(c) Financier :

SCHEDULE 2Government Grant

[#] Government Lease/Conditions of Sale/Conditions of Grant/Conditions of Exchange No. /New
Grant No. ^{*}[as varied or modified by Modification Letter dated [] and registered in the Land
Registry by Memorial No. []], the particulars of which are as follows:-

- (a) Parties :
- (b) Date :
- (c) Term : years from expiring on
- (d) User :
- (e) Lot Number :

[#] Delete as appropriate

^{*} Delete if inapplicable

SCHEDULE 3Property

ALL THAT the estate right title benefit and interest of and in ALL THOSE equal undivided parts or shares of and in the land which for the purposes of identification is shown on the Site Plan attached hereto and thereon coloured [] and of and in the Development now under construction thereon and intended to be known as [] TOGETHER with the exclusive right and privilege to hold use occupy and enjoy ALL THOSE premises known as FLAT [] on the [] FLOOR of [#]TOWER/BLOCK [] [and Carparking Space No. []] of the Development (as shown and designated [] on the Floor Plan(s) [and the Car Park Plan] hereto attached and thereon coloured [])

[#] Delete as appropriate

SCHEDULE 4Measurements of the Property

(a) Saleable Area: -

Approximately [] square metres [of which approximately [] square metres belong to the balcony] *[and [] square metres belong to the utility platform] *[and [] square metres belong to the verandah]

(b) Other Areas: -

*[Approximately []	] square metres for the bay window]
*[Approximately []	] square metres for the flat roof]
*[Approximately []	] square metres for the roof]
*[Approximately []	] square metres for the garden]
*[Approximately []	] square metres for the cockloft]
*[Approximately []	] square metres for the yard]
*[Approximately []	] square metres for the terrace]
*[Approximately []	] square metres for the car parking space]
*[Approximately []	] square metres for the air-conditioning plant room]

*[(c) Air-conditioning platform: -

Approximately [] square metres]

SCHEDULE 5Purchase Price

The purchase price mentioned in Clause 3 (1) shall be HK\$[], payable by the Purchaser to Messrs. [] as follows: -

- (i) the amount of [@][] has been paid as deposit on signing the agreement preliminary to this Agreement;
- (ii) [insert payment terms as the case may be provided that nothing in this Schedule 5 shall affect completion of the sale and purchase of the Property which shall take place in accordance with Clause 5].

[@] Insert an amount equivalent to 10% of the purchase price

SCHEDULE 6

@Fittings and Finishes

@ A schedule of fittings and finishes must be included in this Agreement

SCHEDULE 7

Communal *[and Recreational] Facilities

* Delete if inapplicable

SCHEDULE 8

Matters required to be specified under Section 29B(5) of the Stamp Duty Ordinance: -

- (a) (1) Name of the Vendor -
Address/Registered
Office of the Vendor -
- (2) Name of the Purchaser -
Address/Registered
Office of the Purchaser -
- (b) (1) Identification Number
of the Vendor -
- (2) Identification Number
of the Purchaser -
- (c) (1) Business Registration
Number of the Vendor -
- (2) Business Registration
Number of the Purchaser -
- (d) Description and location
of the Property -
- (e) The Property is a residential property within the meaning of Section 29A(1) of the Stamp
Duty Ordinance.
- (f) Date of this Agreement -
- (g) This Agreement was preceded by [**insert** the name of the provisional agreement, e.g.
Instruction on Sale] on the same terms made between [**insert** the names of the parties]
on the [] day of [] 20[].
- (h) There is no agreed date for the Conveyance on Sale or Assignment of the Property [or as
the case may be].
- (i) There is an agreed consideration for the Conveyance on Sale or Assignment that is to, or
may, take place pursuant to this Agreement and the amount of the consideration is \$[
].
- (j) There is no other consideration which the parties signing this Agreement know has been
paid or given, or has been agreed to be paid or given, to any person for or in connection
with this Agreement or any Conveyance on Sale or Assignment pursuant to this
Agreement (excluding legal expenses) [or as the case may be].

AS WITNESS the hands of the parties hereto the day and year first above written.

SIGNED by)
)
)
 on behalf of the Vendor)
)
 whose signature is verified)
)
 by: -)

Solicitor, Hong Kong SAR

*[SEALED with the Common Seal)
)
 of the Financier and SIGNED)
)
 by)
)
)
 whose signature(s) is/are)
)
 verified by: -)

Solicitor, Hong Kong SAR]

SIGNED by the Purchaser in)
)
 the presence of: -)

Solicitor, Hong Kong SAR

INTERPRETED to the Purchaser in the [] dialect of the Chinese language by: -

Clerk to Messrs. []
Solicitor & C., Hong Kong SAR

RECEIVED on or before the day and year first above written)
of and from the Purchaser the sum)
of HONG KONG DOLLARS)HK\$)

Messrs. [] as stakeholders

Dated

20

AGREEMENT
for Sale and Purchase of
[]

REGISTERED in the Land Registry by
Memorial No. []
on

for Land Registrar

[]
SOLICITORS, & C.,
HONG KONG SAR

[revised on 1.9.2010]

Sales Brochure

The sales brochure must comply with the requirements set out in this Annex.

A. General Requirements

1. All information as required under the Lands Department Consent Scheme and the consent letter issued to the developer to enter into agreements for sale and purchase must be contained in one booklet entitled “sales brochure” (which Chinese translation should be “售樓說明書”). Any other booklet (e.g. promotional materials) made available to prospective purchasers must not be called “sales brochure” or “售樓說明書”.
2. The sales brochure must not contain any promotional material or artist impression picture or graphic, but may contain a one-page to-scale close-up picture showing the outer appearance or building elevation of the development endorsed by the authorized person registered with the Building Authority for the development (“Authorized Person”).
3. The sales brochure must begin with the information following the sequence as far as possible as set out in Appendix I before presenting other information.
4. The sales brochure must not contain any statement to the effect that the Agreement for Sale and Purchase or the Deed of Mutual Covenant or the Sub-Deed of Mutual Covenant (if any) or any other aspect of the development is subject to the Lands Department Consent Scheme or has been approved by the Director of Lands.
5. The sales brochure must state the date of its printing.
6. The sales brochure must be provided in both English and Chinese, with a statement in both English and Chinese that “where there is discrepancy in meaning between the English and Chinese versions, the English version shall prevail” “中英文版本如有歧義，以英文版本為準”.

B. Information In the Sales Brochure

The sales brochure must include at least the following information, which must be accurate at the time of printing the sales brochure:-

1. Basic Information of the Development

(a) Description of the development, including but not limited to:-

- (i) the postal address of the development as confirmed with the Commissioner of Rating and Valuation;
- (ii) (where the development comprises multi-storeyed building(s)) the total number of storeys of each tower in the development and the floor numbering of the development as set out in the approved form of Deed of Mutual Covenant or Sub-Deed of Mutual Covenant (if any) (collectively "DMC"), including any omitted floor numbering and refuge floors; and
- (iii) (where the development comprises houses) the total number of houses and the house numbering of the development as set out in the DMC, including any omitted house numbering.

(b) Information on the developer, authorized person, contractor, solicitors firm, mortgagee bank, financier, etc. including the names of:-

- (i) the developer, its parent or holding company;
- (ii) the Authorized Person and the professional firm to which the Authorized Person belongs;
- (iii) the main superstructure contractor for the development registered with the Building Authority;
- (iv) the solicitors firm representing the developer in the sale of units in the development;
- (v) the mortgagee bank (if any) financing the construction of the development under a building mortgage;
- (vi) the bank which has given an undertaking to provide finance to complete the development (if any); and
- (vii) the financier which had provided loans to finance the development (if

any),

and any personal or financial relationship of the Authorized Person and the partner of the solicitors firm with the developer, its parent or holding company and the main superstructure contractor.

[NOTE: If there are any subsequent changes to the persons or the relationships disclosed, amendments to the sales brochure must be made immediately and the Director of Lands must be informed of the changes within 3 working days.]

- (c) Information on the anticipated completion date of the development.

2. Design of the Development and Property Management

- (a) Information on the design of the development, including but not limited to whether there are any non-structural prefabricated external walls or curtain walls forming part of the enclosing walls and if so:-
 - (i) the range of thickness of the non-structural prefabricated external walls of each block and the total area of the non-structural prefabricated external walls of each unit; and
 - (ii) the range of thickness of the curtain walls of each block and the total area of the curtain walls of each unit.
- (b) Information on the identity of the intended manager (if known).

3. Location Plan of the Development

Location Plan which must be at least 16cm long and 16cm wide with the font size of the related legends being at least 10, showing:-

- (a) the location of the development and the names of the nearby streets; and
- (b) the communal facilities and prominent environmental features within 250m from the boundary of the whole development (but not individual phases of the development), including but not limited to the communal facilities/environmental features set out in the list at Appendix II;

and all pictorial presentations must be drawn to scale.

4. Relevant Outline Zoning Plan

Relevant Outline Zoning Plan which must be at least 16cm long and 16cm wide with the font size of the related legends being at least 10, showing the existing and proposed uses of land within 500m from the whole development (but not individual phases of the development).

[NOTE: Sufficient copies of the relevant Outline Zoning Plan must be deposited in the sale office(s) for inspection by prospective purchasers free of charge.]

5. Master Layout Plan of the Development

Master Layout Plan which must be drawn to scale (with the scale used marked on the plan), showing the location and layouts of the building(s), open areas, facilities and undeveloped land (with the intended use) within the boundary of the development and setting out the expected completion date of the building(s) and facilities.

6. Floor Plans

Floor Plans of typical and non-typical floors (with the scale used marked on the plans), showing all principal external dimensions of the residential units, the external dimensions of individual compartments in each residential unit and the floor-to-floor height of the residential units in accordance with the latest building plan(s) approved by the Building Authority, with a note informing prospective purchasers that the internal areas of the residential units on the upper floors will generally be slightly larger than the lower floors due to the reducing thickness of the structural walls on the upper floors. If there are special fittings/features affecting the enjoyment of a residential unit (e.g. exposed pipes), the location of such special fittings/features must be specified.

[NOTE: Sufficient copies of the building plans approved by the Building Authority must be deposited in the sales office(s) for inspection by prospective purchasers free of charge.]

7. Area Schedule of Units

Information on the saleable area, unit covered area, gross floor area and other

areas of each unit in the format at Appendix III(A) or Appendix III(B).

8. Floor Plan of the Carpark

- (a) Floor Plan(s) showing the location of the parking spaces (if any).
- (b) Information on the number, dimensions and area of the parking space (if any).

9. Salient Points of Deed of Mutual Covenant (DMC)

Salient points of the DMC including:-

- (a) common parts;
- (b) undivided shares;
- (c) terms of appointment of manager;
- (d) principle/basis of fixing management fee;
- (e) apportionment of management expenses;
- (f) management fee deposit;
- (g) retained areas (if any),

with a note informing prospective purchasers that a full script of the DMC is available for inspection upon request, free of charge.

[NOTE: Sufficient copies of the DMC must be deposited in the sales office(s) for inspection by prospective purchasers free of charge.]

10. Salient Points of Land Grant Conditions

Salient points of the relevant land grant ("Land Grant Conditions"), including:-

- (a) lot number;
- (b) lease term;

- (c) user restriction;
- (d) Government, institutional or community facilities (“GIC” facilities”), public open space and public facilities to be constructed;
- (e) obligations to construct or maintain structures or landscape inside or outside the boundary of the development;
- (f) onerous lease conditions (if any) which would affect purchasers’ usual legal rights.

[NOTE: Sufficient copies of the Land Grant Conditions must be deposited in the sales office(s) for inspection by prospective purchasers free of charge.]

11. Government, Institutional or Community Facilities, Public Open Space and Public Facilities

- (a) Information in a separate section, in larger prints, on the GIC facilities, public open space and public facilities (if any), including:-
 - (i) the area (in figures) of the public open space;
 - (ii) a description of the GIC facilities and the public facilities.
- (b) Prominent statements illustrating the fact (as the case may be):-
 - (i) that the public have the right to enter into and use the public open space and the public facilities freely and without payment of any nature;
 - (ii) that the public open space and the public facilities are to be managed, operated and maintained at the expense of the owners and that the owners will have to meet a proportion of the expense of managing, operating and maintaining such public open space and public facilities in any management expenses apportioned to their units.
- (c) Plan(s) showing the location of all GIC facilities, public open space and (if possible) public facilities, which must be coloured or shaded in the same colour, format or pattern (if applicable) as stipulated in the Land Grant

Conditions.

- (d) Relevant terms of the Land Grant Conditions, the DMC and the Deed of Dedication (if applicable) concerning the GIC facilities, the public open space and the public facilities.

12. Matters relating to Preliminary Agreement for Sale and Purchase

Information concerning the preliminary agreements for sale and purchase (“PASP”), including prominent statements that:-

- (a) the preliminary deposit payable on the signing of a PASP is an amount equivalent to 10% of the purchase price of the residential unit (and any parking space);
- (b) the preliminary deposits paid by purchasers on the signing of the PASPs will be encashed and the proceeds held by the stakeholders;
- (c) if the purchaser under the PASP does not, for any reason, sign the Agreement for Sale and Purchase (“ASP”), the developer has the right to keep the preliminary deposit paid by him which is an amount equivalent to 10% of the purchase price; and
- (d) the purchaser under the ASP is required to agree with the developer in the ASP to the effect that other than entering into a mortgage or charge, he will not nominate any person to take up the Assignment, sub-sell the residential unit (and any parking space) or transfer the benefit of the ASP in any manner whatsoever or enter into any agreement so to do before completion of the sale and purchase and execution of the Assignment.

13. Notes to Purchasers of First-hand Residential Properties

Full script of the most updated version of the “Notes to Purchasers of First-hand Residential Properties” jointly published by the Estate Agents Authority and the Consumer Council.

14. Warning to Purchasers

“Warning to Purchasers” notice prescribed in Forms A1 and A2 (both for Consent Scheme) contained in Practice Direction 12 of Chapter 24 Section A of The Hong

Kong Solicitors' Guide to Professional Conduct (Volume 2) issued by The Law Society of Hong Kong.

15. Definitions of "Saleable Area" and "Other Areas"

Definitions of "Saleable Area" (which Chinese translation must be "實用面積") and "Other Areas" (both as defined in Appendix IV).

16. Fittings and Finishes

Description of fittings and finishes as set out in the recommended list at Appendix V.

17. Cancellation Agreement

Prominent statement that in the event of the developer, at the request of the purchaser, agreeing (at his own discretion) to cancel the ASP or the obligations of the purchaser thereunder, the developer will keep the sum of 10% of the total purchase price of the residential unit (and any parking space) in addition to payment by the purchaser of all legal costs, charges or disbursements (including stamp duty, if any) in connection with the cancellation of the sale and purchase.

18. Government Rent

Note to purchasers that the developer will pay/has paid all outstanding Government rent in respect of the lot from the date of the Land Grant Conditions up to and including the date of the respective assignments.

19. Miscellaneous Payments upon Delivery of Unit

Prominent statement on purchasers' obligation to pay debris removal fee and to reimburse the developer for water/electricity/gas deposit, even though the exact amount is unknown.

20. Defects Liability Warranty Period

Information on the duration of the defects liability warranty period in respect of which the developer must remedy all defects to the unit and the fittings and finishes in accordance with the approved form of ASP.

21. Maintenance of Slopes

If the Land Grant Conditions require the owners to maintain at their expense any slopes within and/or outside the lot:-

- (a) note to prospective purchasers informing them of the requirement and that under the DMC the manager is to be given full authority by all the owners to carry out the necessary slope maintenance works in accordance with all guidelines issued from time to time by the appropriate government department and each owner will be obliged to make contributions towards the costs of such works;
- (a) plan showing the slopes and any retaining walls or other related structures already constructed or to be constructed within and/or outside the lot;
- (b) information on the undertakings (if any) of the developer to carry out any work on any slopes, etc.

22. Modification

Where a modification of the Land Grant Conditions is underway, information on the nature of the modification and the specific lease condition(s) to be modified.

23. Notice as to Changes

Warning note that the overall development scheme of the development site and the surrounding areas and environment are subject to change or modification.

24. Service Agreements

Information on all important service agreements concerning the respective units which the developer has entered into with the respective service providers prior to delivery of the units, including telecommunication services.

25. Purchasers' Right of Access to Information

Prominent statement that purchasers must have a right of access to information on the total construction costs and total professional fees required to complete the development as well as the total construction costs and total professional fees expended and paid as at the end of the preceding calendar month and that

purchasers must be provided with a written copy of the aforesaid updated information upon requests from purchasers who have signed the ASP subject to the payment of a nominal fee of not more than HK\$100.00 per request.

26. Website Address

Information on the address of the website containing the electronic copies of the sales brochure, the price list(s) and the register of ASPs maintained by the developer.

27. Contact Details of The Law Society of Hong Kong

Information on the enquiry telephone number and the website address of The Law Society of Hong Kong to facilitate prospective purchasers to obtain easy access to the details of solicitors firms available to them.

28. Footnotes on Abbreviations

Footnotes as the key to the various abbreviations used in the Outline Zoning Plan printed in the sales brochure.

Sequence of
Information in First Part of Sales Brochure

1. Basic Information of the Development (發展項目基本資料)
2. Design of the Development and Property Management (物業設計及管理)
3. Location Plan of the Development (物業位置圖)
4. Relevant Outline Zoning Plan (當區分區計劃大綱圖)
5. Master Layout Plan of the Development (物業整體規劃圖)
6. Floor Plans (樓層平面圖)
7. Area Schedule of Units (單位面積表)
8. Floor Plan of the Carpark (停車場平面圖)
9. Salient Points of Deed of Mutual Covenant (大廈公共契約重要條款)
10. Salient Points of Land Grant Conditions (政府租契重要條款)
11. Government, Institutional or Community Facilities, Public Open Space and Public Facilities (政府、機構或社區設施、公共空間及公共設施)
12. Matters relating to Preliminary Agreement for Sale and Purchase (有關臨時買賣合約事宜)
13. Notes to Purchasers of First-hand Residential Properties (一手住宅物業買家須知)

[NOTE: Other information, including the one-page to-scale close-up picture (if any) showing the outer appearance/building elevation of the development endorsed by the authorized person registered with the Building Authority for the development, shall be presented in the remaining parts of the sales brochure, and headings should be provided.]

Appendix II

List of **Communal Facilities/Environmental Features**

The Location Plan must show clearly and identify all free standing and purpose-built facilities/features, including but not limited to:-

1.	Crematorium/columbarium	火葬場 / 靈灰安置所
2.	Mortuaries	殮房
3.	Slaughterhouses	屠房
4.	Bus/railway depots	巴士廠 / 鐵路車廠
5.	Ventilation shafts (MTR)	通風井 (香港鐵路)
6.	Libraries/museums	圖書館 / 博物館
7.	Barracks	軍營
8.	Cargo working area	貨物裝卸區
9.	Petrol/LPG filling stations	加油站 / 石油氣加氣站
10.	Oil depots/aviation and marine fuel depots	油庫 / 航空及船舶燃油庫
11.	Sewage treatment works and facilities	污水處理廠及設施
12.	Landfill or ex-landfill	堆填區或前堆填區
13.	Landfill gas flaring plants	堆填區廢氣燃燒裝置
14.	Power plants and electricity sub-stations	發電廠及電力變壓站
15.	Pylons (high voltage power line)	塔架 (高壓電纜)
16.	Correctional institutions/prisons	懲教所/監獄
17.	Addiction treatment centres	戒毒中心
18.	Helicopter landing pad	直昇機坪
19.	Clinics	診所
20.	Fire stations/ambulance depots	消防局 / 救護站
21.	Funeral parlours/cemeteries	殯儀館 / 墳場
22.	Judicial facilities (e.g. courts and magistracies)	司法機構 (如法院及裁判法院)
23.	Refuse collection points	垃圾收集站
24.	Hospitals	醫院
25.	Markets (e.g. wet market and wholesale market)	市場 (如街市及批發市場)
26.	Police stations	警署
27.	Public carpark/lorry parks	公眾停車場 / 貨車停泊處
28.	Public conveniences	公廁
29.	Public transport terminus and rail stations	公共交通總站及鐵路站
30.	Public utility installations	公共事業設施
31.	Religious institutions (e.g. church, temple and Tsz Tong)	宗教機構 (如教堂、廟宇及祠堂)
32.	Schools (e.g. kindergartens, primary schools, secondary schools and vocational training schools)	學校 (如幼稚園、小學、中學及職業訓練學校)
33.	Social welfare facilities (e.g. elderly centres and homes for mentally disabled)	社會福利設施 (如長者中心及智障院舍)

34.	Sports facilities/sports grounds	體育設施 / 運動場
35.	Public park	公園
36.	Swimming pool	泳池

Template for Area Schedule in Sales Brochure

樓盤名稱 Name of Development, 期數(如有) Phase (if any), 地區 Location

座數 Tower	樓層 Floor	單位 Unit	實用面積 (包括露台及工作平台) (平方呎) Saleable Area (including balcony and utility platform) (sq.ft.)	另		單位有蓋面積 (平方呎) Unit Covered Area (sq.ft.)	單位所分攤的 公用地方面積 (平方呎) Apportioned Share of Common Area (sq.ft.)	建築面積 (平方呎) Gross Floor Area (sq.ft.)	其他面積 (平方呎) Other Areas (sq.ft.) (其他如天台、 平台、花園、閣樓、天井、 大陽台、停車位等(須分別列出) Other items such as roof, flat roof, garden, cockloft, yard, terrace, car parking space (must be listed separately)	冷氣機平台 (平方呎) Air-conditioning platform (sq.ft.)
				窗台 Bay window	冷氣機房 Air-conditioning plant room					
5	1	A	581 (露台 : 22) (工作平台 : 16)	12	12	605	153	758		
		B								
		C								
		D								
		E								
	2	A	581 (露台 : 22) (工作平台 : 16)	12	12	605	153	758		
		B								
		C								
		D								
		E								

- 實用面積包括露台及工作平台面積，但不包括其他面積或冷氣機平台面積。
Saleable Area includes areas of balcony and utility platform but does not include Other Areas or area of air-conditioning platform.
- 單位有蓋面積包括實用面積及窗台及冷氣機房面積。
Unit Covered Area includes the Saleable Area and areas of bay window and air-conditioning plant room.
- 單位所分攤的公用地方面積包括住宅之各樓層之電梯大堂、電梯槽、機電房、垃圾房、會所面積等等（如有把面積計算在內）。
Apportioned Share of Common Area includes lift lobbies, lift shafts, electrical meter rooms, refuse room, clubhouse area etc (if such area is included in the calculation of Apportioned Share of Common Area of the unit).
- 建築面積包括單位有蓋面積及單位所分攤的公用地方面積。
Gross Floor Area includes the Unit Covered Area and the Apportioned Share of Common Area of the unit.

(Figures shown in the template are for illustration only.)

Template for Area Schedule in Sales Brochure

樓盤名稱 Name of Development, 期數 (如有) Phase (if any), 地區 Location

單位 (Unit)		A	B	C
實用面積 (包括露台及工作平台) (平方呎) Saleable Area (including balcony and utility platform) (sq.ft.)		905 (露台 : 22) (工作平台 : 12)	755 (露台 : 22) (工作平台 : 12)	605 (露台 : 22) (工作平台 : 12)
另	窗台 Bay window	40	30	20
	冷氣機房 Air-conditioning plant room	15	15	15
單位有蓋面積 (平方呎) Unit Covered Area (sq.ft.)		960	800	640
單位所分攤的公用地方面積 (平方呎) Apportioned Share of Common Area (sq.ft.)		240	200	160
建築面積 (平方呎) Gross Floor Area (sq.ft.)		1200	1000	800
其他面積 (平方呎) Other Areas (sq.ft.) (其他如天台、平台、花園、閣樓、天井、大陽台、停車位等(須分別列出) Other items such as roof, flat roof, garden, cockloft, yard, terrace, car parking space (must be listed separately)				
冷氣機平台 (平方呎) Air-conditioning platform (sq.ft.)				

- 實用面積包括露台及工作平台面積，但不包括其他面積或冷氣機平台面積。
Saleable Area includes areas of balcony and utility platform but does not include Other Areas or area of air-conditioning platform.
- 單位有蓋面積包括實用面積及窗台及冷氣機房面積。
Unit Covered Area includes the Saleable Area and areas of bay window and air-conditioning plant room.
- 單位所分攤的公用地方面積包括住宅之各樓層之電梯大堂、電梯槽、機電房、垃圾房、會所面積等等（如有把面積計算在內）。
Apportioned Share of Common Area includes lift lobbies, lift shafts, electrical meter rooms, refuse room, clubhouse area etc (if such area is included in the calculation of Apportioned Share of Common Area of the unit).
- 建築面積包括有蓋面積及單位所分攤的公用地方面積。
Gross Floor Area includes the Unit Covered Area and the Apportioned Share of Common Area of the unit.

(Figures shown in the template are for illustration only.)

Definition of “Saleable Area”:

the floor area of a unit enclosed by walls (inclusive of the floor area of any balconies, utility platforms and verandahs but exclusive of the Other Areas), which area (including any balcony, utility platform or verandah enclosed by walls) shall be measured from the exterior of the enclosing walls of such unit, balconies, utility platforms or verandahs (as the case may be) except where such enclosing walls separate two adjoining units, balconies, utility platforms or verandahs (as the case may be), in which case the measurement shall be taken from the middle of those walls, and shall include the internal partitions and columns within such unit, balconies, utility platforms or verandahs (as the case may be); but shall exclude the common parts outside the enclosing walls of such unit, balconies, utility platforms or verandahs (as the case may be), and for balconies, utility platforms or verandahs, shall exclude the whole thickness of the enclosing walls or boundary which abut onto the unit Provided That if any of the enclosing walls abut onto a common area, then the whole thickness of the enclosing walls which so abut shall be included. Where a balcony, utility platform or verandah is not enclosed by a solid wall, the floor area of such balcony, utility platform or verandah shall be measured from the external boundary of the said balcony, utility platform or verandah.

Definition of “Other Areas”:

the area of any cockloft which shall be measured from the interior of the enclosing walls and shall include the internal partitions and columns within such cockloft;

the area of any bay window which shall be measured from the exterior of the enclosing walls or glass windows of such bay window and from the point where the bay window meets the wall dropping to the floor level of a unit excluding the thickness of such wall;

the area of any carparking space which shall be measured to the centre of its demarcating lines or the interior face of its enclosing walls, as the case may be;

the area of any yard, terrace, garden, flat roof, roof and air-conditioning plant room which shall be measured from the interior of their boundary lines, and where boundary consists of a wall, then it shall be measured from the interior of such wall.

**Recommended List of
Fittings and Finishes**

EXTERIOR

External Walls

The type of external finishes

Windows

The material of the frames and glass

Bay Windows

The material and windowsill finishes of the bay windows

Planter

The type of finishes of the planters

Verandah/Balcony

The type of finishes and whether the verandah/balcony is covered or not

Drying Facilities for Clothing

The type and material of the drying facilities for clothing

INTERIOR FINISHES

Lobbies

The type of wall, floor and ceiling finishes in the lobbies

Internal Walls and Ceilings

The type of bedroom and living/dining room wall and ceiling finishes

Floors

The material of the floor and skirting of the bedrooms and the living/dining rooms

Bathroom

The type of wall, floor, and ceiling finishes and whether the wall finishes run up to the ceiling

Kitchen

The type of wall, floor, ceiling, and cooking bench finishes and whether the wall finishes run up to the ceiling

INTERIOR FITTINGS

Doors

The material, finishes and accessories of the doors (especially the entrance door to each individual unit)

Bathroom

The type and material of the fittings and equipment in the bathroom; the water supply system; bathing facilities i.e. shower or bath tub and size of bath tub if applicable

Kitchen

The material of the sink unit; the water supply system; the material and finishes of the kitchen cabinets; the type of all other fittings and equipment in the kitchen

Bedroom

The type and material of all the fittings (such as wardrobes) in the bedroom

Telephone and Aerials

The locations and number of such utilities

Electricity

Details of the fittings including safety devices, concealed or exposed conduits, the location and number of power points, sockets, air-conditioner points etc.

Gas/Electricity Supply

The type, system and location of the gas/electricity supply

Washing Machine Connection Point

The location and design of the washing machine connection point

Water Supply and Pipes

The material of the water pipes, whether they are concealed or exposed and whether hot water is available etc.

SECURITY FACILITIES

A description of security services including details of all built-in provisions and their locations

MISCELLANEOUS

Lifts

The country of origin/brand name of the lifts and whether the lifts serve all floors

Letter Box

The letter box material

Refuse Collection

The means of refuse collection, location of refuse room etc.

Water/Electricity/Gas Meters

The location of the meters and whether there are separate or communal meters of individual apartments

Note:

If the country of origin/brand name is mentioned, the developer must undertake that materials of comparable quality will be used if the intended source becomes unavailable.

***Monthly/Final Report by Solicitors**

Report on funds in the stakeholder account and progress of sales as at the last day of the month of _____, 20_____.

To : [Name of the Developer i.e. the registered owner of the lot]

c.c. (1) Transport and Housing Bureau (Attn: Principal Assistant Secretary for Transport and Housing (Housing) (Private Housing))

(2) Legal Advisory and Conveyancing Office of Lands Department

*[(3) Name of the Mortgagee]

1. Lot No. : _____
2. Name of the Developer : _____
3. Name of the Development : _____
4. Phase No. (if applicable) : _____
5. No. of units in the Development : _____
6. *No. of units in Phase _____
(if applicable) of the Development : _____
7. Date of the consent letter : _____
8. Effective date of the consent : _____
9. Date of consent to assign (if issued) : _____
10. (a) Date of certificate of compliance (if issued) : _____
(b) Date of certificate of fittings and finishes : _____

I. Receipt and application of funds in the stakeholder account

Item No.			Sum b/f from previous month	Sum received or paid in the month	Total of sum c/f to next month	Ref No.
Receipt						
A	(1)	Sales proceeds received				
	(2)	Interest on sales proceeds received				
Sub-total:						A
Payment						
B	Payment pursuant to Clause 26(1)(a) of the Agreement for Sale and Purchase (“ASP”)					B
C	Repayment of funds drawn under the building mortgage and interest under Clause 26(1)(b) of the ASP					C
D	Repayment of other moneys secured by the building mortgage under Clause 26(1)(c) of the ASP					D
E	Refund to purchasers					E
F	Release of funds to the Developer under Clause 26(1)(d) of the ASP					F
G	Release of interest on sale proceeds to the Developer					G
Balance of funds in the stakeholder account c/f [A-B-C-D-E-F-G]						

II. Progress of sale of units

A. No. of units sold

	b/f from previous month	Current month	<u>Total</u>
(1) Total no. of units handled by my firm for which ASPs are signed and are subsisting			
(2) Total no. of units handled by my firm for which ASPs are subsisting and full payment of purchase price has been made			
(3) Total no. of units handled by my firm for which ASPs are cancelled			

B. List of all units in IIA(2) for which full payment of purchase price is made in the current month :-

<u>Flat</u>	<u>Floor</u>	<u>Block</u>

C. List of all units in IIA(3) for which ASPs are cancelled in the current month :-

<u>Flat</u>	<u>Floor</u>	<u>Block</u>	<u>Percent of purchase price forfeited</u>

I, _____, a partner in the firm of _____,
solicitors which has been instructed by the Developer to act in connection with the sale of units
now in the course of construction on the above-mentioned property, do certify the contents of this
report as true and correct as at the last day of the month to which this report relates.

Dated this _____ day of _____.

(_____ Name _____)
Solicitor

***Delete if inapplicable**